

HB 3038 -- INVESTIGATION OF ABUSE OR NEGLECT OF CERTAIN ADULTS

SPONSOR: Cook

COMMITTEE ACTION: Voted "Do Pass" by the Standing Committee on Corrections and Public Institutions by a vote of 12 to 0. Voted "Do Pass" by the Standing Committee on Rules-Administrative by a vote of 11 to 0.

This bill establishes within the Department of Health and Senior Services (DHSS) the "Office of Special Investigations" to assist in the investigations of abuse, neglect, and exploitation of certain adults.

The office will investigate or assist in the investigation of abuse, neglect, or exploitation upon the request of a local, county, State, or Federal law enforcement agency; a county, State, or Federal prosecutor; or staff from the Division of Senior and Disability Services. Additionally, the office can coordinate with and provide assistance, expertise, or training to law enforcement agencies and multidisciplinary teams.

The bill also provides that the director of DHSS has the power to subpoena the production of books, papers, or records when necessary to investigate potential abuse, neglect, or exploitation.

PROPOSERS: Supporters say that this office already exists but should be codified and strengthened in statute. The subpoena power allows victims to access necessary documents, and many exploitation cases hinge on the documents. This expedites cases, and delays benefit abusers, not victims. The office is focused on the State's most vulnerable populations. Coordination between DHSS and local law enforcement is necessary, the office will be faster and more proactive with this change, and financial crimes can be reduced and rectified.

Testifying in person for the bill were Representative Cook; Zac Jenkins; Cade Tremain, Missouri Department of Health and Senior Services; and Missouri Council on Aging.

OPPOSERS: There was no opposition voiced to the committee.

Written testimony has been submitted for this bill. The full written testimony and witnesses testifying online can be found under Testimony on the bill page on the House website.